Policy: 6225
Section: 6000 – Management Support

(DRAFT 01-11-21)

PROPOSED
NEW POLICY

Information Item

Rationale: Effective June 11, 2020, the Uniform Electronic Transactions Act (UETA) authorized the use of electronic signatures by local agencies, including school districts. The UETA repeals and replaces RCW Chapter 19.360. One provision of the UETA, RCW 1.80.170, requires governmental agencies to determine whether, and the extent to which, the agency "will send and accept electronic records and electronic signatures to and from other persons and otherwise create, generate, communicate, store, process, use, and rely upon electronic records and electronic signatures." The UETA allows districts to use an electronic signature with the same legal effect or force as a traditional signature, unless a separate state or federal law specifically requires a traditional signature.

The district must adopt a policy describing the type of electronic signature allowed and the manner and format for electronic signatures. The proposed new policy and procedure satisfies these legal requirements and provides guidance for district employees on the use of electronic signatures.

Use of Electronic Signature

The board establishes this electronic signature policy to:

1. Promote efficiency in order to conserve public resources;

2. Establish guidelines for the use of electronic signatures for certain district transactions;

3. Provide reasonable assurance of the integrity, authenticity, and nonrepudiation of electronic documents when electronic signatures are used by the district; and

4. Determine the scope of the district's use of electronic signature providers, selected through the district's procurement process as the approved method for affixing an electronic signature to an electronic record. This policy will apply to any future replacement to a specific service provider platform.

Furthermore, reducing the district's reliance on paper-based transactions will improve information security and sharing, allow faster approval of and access to documents, and reduce costs and environmental impact. Additionally, providing the option of electronic signatures, when practicable, is consistent with the intent of Washington State law to promote electronic transactions and remove barriers that might prevent the use of electronic transactions by governmental entities.

Therefore, the district encourages electronic transactions and the use of electronic records and signatures, and recognizes electronic signatures as legally binding and equivalent in force and effect as a traditional signature made when a person physically marks a document with the intent to sign the record.

An electronic signature is an acceptable substitute for a traditional signature on records requiring the signature of any record whenever the use of a traditional signature is authorized or required, except as prohibited by law or as provided herein.

If an electronic signature is used for interstate transactions or for documents required by the U.S. Federal government, the electronic signature shall comply with the requirements of the Electronic Signatures in Global and Electronic Commerce Act.

This policy in no way affects the district's ability to conduct a transaction using a physical medium and shall not be construed as a prohibition on the use of traditional signatures.

The superintendent, or designee, will establish procedures for the use of electronic signatures.

Legal References: RCW 19.360.020 – State and local agencies – Electronic signatures and records – Use and acceptance
15 U.S.C. Ch. 96 Electronic Signatures in Global and National Commerce Act

Adopted: _____

VPS